CHAPTER 51 Special Officer for Linguistic Minorities

Constitutional Provisions

Originally, the Constitution of India did not make any provision with respect to the Special Officer for Linguistic Minorities[1]. Later, the States Reorganisation Commission (1953–55) made a recommendation in this regard. Accordingly, the Seventh Constitutional Amendment Act of 1956 inserted a new Article 350-B in Part XVII of the Constitution. This article contains the following provisions:

1. There should be a Special Officer for Linguistic Minorities. He is to be appointed by the President of India.

2. It would be the duty of the Special Officer to investigate all matters relating to the safeguards provided for linguistic minorities under the Constitution. He would report to the President upon those matters at such intervals as the President may direct. The President should place all such reports before each House of Parliament and send to the governments of the states concerned.

It must be noted here that the Constitution does not specify the qualifications, tenure, salaries and allowances, service conditions and procedure for removal of the Special Officer for Linguistic Minorities.

Commissioner For Linguistic Minorities

In pursuance of the provision of Article 350-B of the Constitution, the office of the Special Officer for Linguistic Minorities was created in 1957. He/she is designated as the Commissioner for Linguistic Minorities (CLM).

The CLM has his/her headquarters in New Delhi[2]. He/she has three regional offices at Belgaum (Karnataka), Chennai (Tamil Nadu) and Kolkata (West Bengal). Each is headed by an Assistant Commissioner.

The CLM is assisted at headquarters by Deputy Commissioner and an Assistant Commissioner. He/she maintains liaison with the State Governments and Union Territories through nodal officers appointed by them.

At the Central level, the CLM falls under the Ministry of Minority Affairs. Hence, he/she submits the annual reports or other reports to the President through the Union Minority Affairs Minister.[3]

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The CLM interacts with the States/UTs on all the matters pertaining to the issues concerning implementation of the Constitutional and Nationally Agreed Safeguards provided to the linguistic minorities.

The CLM organisation takes up all matters relating to safeguards for linguistic minorities brought to their notice by linguistic minority individuals, groups, associations or organisations. Further, the CLM personally visits linguistic minority areas and educational institutions for an on-the-spot assessment of the status of implementation of the scheme of safeguards.

In this connection, the CLM holds discussions, when required, with the Chief Ministers and Governors of the States and the Chief Ministers and Lt. Governors of the UTs. He/she also holds discussions at the